

Court No. - 21

Case :- WRIT - C No. - 45274 of 2014

Petitioner :- Smt. Krishna Devi

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Smt. Ushma Mishra, Sunita Jain

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

The petitioner is a landlady of the premises where the respondent no. 4 is asserting his rights as a tenant. He has been awarded an electricity connection. Learned counsel for the petitioner contends that the previous dues of Rs. 19002/- have been saddled on the petitioner through the consumption of the same has been enjoyed by the respondent no. 4.

To this extent, in our opinion, this is a private dispute between the petitioner and the respondent no. 4. A suit has already been filed for an injunction by the respondent no. 4 not to evict him from the premises. The petitioner is a defendant in the said suit.

The petitioner, therefore, can apply in the same for realization of any such damages or dues of electricity which the petitioner claims is due on the respondent no. 4 for which the petitioner can always file an interim application before the Trial Court and the same, if filed, will be disposed of expeditiously.

We do not find any reason to interfere with the impugned order keeping in view the provisions of Clause 4.3 and 4.4 of the Electricity Supply Code, 2005. The writ petition is consigned to records.

Order Date :- 28.8.2014

Lalit Shukla